

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUOE065467: TYRONE BLACKMAN vs CASA PACIFICA CENTER FOR
CHILDREN AND FAMILIES
08/03/2026 in Department 40
Demurrer to Plaintiff's Complaint**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

On April 30, 2026, plaintiff Tyrone Blackman ("Plaintiff") filed a complaint for personal injury against defendant Casa Pacifica Center for Children and Families ("Defendant") using Judicial Council Form PLD-PI-001. (Code Civ. Proc., § 425.12.) In the caption of the Complaint, Plaintiff checked the boxes for "personal injury" and "other (specify): IIED." Paragraph 10 of Judicial Council Form PLD-PI-001 has pre-printed language stating "the following causes of action are attached and the statements above apply to each" and boxes to check applicable causes of action. Plaintiff checked the boxes for General Negligence and Intentional Tort. Form PLD-PI-001 instructs at Paragraph 10 that "each complaint must have one or more causes of action attached." Plaintiff's complaint does not attach any causes of action.

Defendant attempted to meet and confer with Plaintiff about the uncertainty in the Complaint. Those attempts were unsuccessful. Therefore, on July 1, 2026, Defendant filed this demurrer. Plaintiff has not opposed.

Since demurrers (or motion for judgment on the pleadings) require a court to determine the legal sufficiency of a pleading, neither a party's failure to appear and oppose a demurrer, nor its failure to request leave to amend a pleading, can be construed as an abandonment or waiver of its cause of action or defense. (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 816 [motion for judgment on the pleadings; no request for leave to amend]; *Dobbins v. Hardister* (1966) 242 Cal.App.2d 787, 797 [motion for judgment on the pleadings; no appearance and no request for leave to amend]; *Greninger v. Fischer* (1947) 81 Cal.App.2d 549, 554-555 [demurrer; failure to appear]; Code Civ. Proc., § 472c, subd. (a) [demurrer; leave to amend available on appeal even if not requested in trial court].) Accordingly, Plaintiff's failure to oppose the demurrer does not relieve the Court of its duty to determine the merits of the demurrer.

A complaint must set out a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A special demurrer for uncertainty lies when the pleading is so ambiguous, unintelligible, or vague that the responding party cannot reasonably determine what issues, claims, or charges must be admitted or denied (Code Civ. Proc., § 430.10, subd. (f).) When uncertainty goes to matters that are essential to the cause of action, the very elements of the cause of action, then a demurrer can be made as a special demurrer for uncertainty. (*Gonzales v. State of California* (1977) 68 Cal.App.3d 621, 634, abrogated on other grounds by *City of Stockton v. Superior Court* (2007) 42 Cal. 4th 730.)

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Here, the Complaint indicates a personal injury cause of action by IIED in the caption. But Paragraph 10 indicates negligence as well as an intentional tort. Furthermore, Paragraph 10 alleges that the causes of action are attached but the Complaint fails to attach any cause of action. The Complaint is devoid of any material factual allegations constituting a claim for negligence or intentional tort (such as the relationship between the parties, what Defendant allegedly did or failed to do to incur liability, the dates and place that the events allegedly occurred, or how Plaintiff was harmed). Thus, Defendant cannot reasonably determine the claims asserted or matters to admit or deny.

For the foregoing reasons, the court rules as follows.

Defendant's demurrer for uncertainty is SUSTAINED, with leave to amend.

Plaintiff Tyrone Blackman shall serve and file the first amended complaint within 30 days of service of notice of this ruling, pursuant to Code of Civil Procedure, section 472b.

Notice to be provided by Defendant.